

OREGON CITY ENTERPRISE

FIFTY-SIXTH YEAR NO. 46.

OREGON CITY, OREGON, FRIDAY, NOVEMBER 17, 1922.

ESTABLISHED 1886

FINAL CANVASS IS MADE OF BALLOTS CAST IN COUNTY

No Change In Officials Is Made By Formal Count; Returns Upon Recall Of County Judge Incomplete.

FIGURES ARE MISSING FROM PRECINCT TEN

Final Results Still Awaiting Checking Of Lists From District In Oregon City.

The official count of the vote cast at the election last Tuesday was completed Friday afternoon by County Clerk Fred A. Miller, with the exception of the recall of County Judge H. E. Cross and the precinct officials. Failure of the election board in precinct 10, Oregon City, to make a return on the recall vote is holding up the official count on the recall.

No changes in the officers named under the unofficial count were made, although there were slight variations from the unofficial count in the number of votes received by the different candidates. In several instances the unofficial count checked within eight or ten of the official figures. The complete official returns, forwarded to the secretary of states, follow:

For Governor.	
Ben W. Olcott	4451
Walter M. Pierce	7114
For State Treasurer.	
O. P. Hoff	7457
F. L. Tou Velle	2660
For Supreme Justice (three to be elected).	
George H. Burnett	8377
John McCort	8098
John L. Rand	7439
For State School Superintendent.	
J. A. Churchill	6304
S. S. George	3512
For Labor Commissioner.	
C. H. Gram	6392
B. H. Hansen	2691
For Public Service Commissioner.	
Thomas K. Campbell	5467
Gus E. Erickson	1832
T. M. Kerrigan	2420
Circuit Judge Fourth District.	
J. U. Campbell	8015
George Story	2127
State Senator.	
F. J. Toose	7962
Joint Senator.	
W. J. Clark	5757
E. T. Hedlund	3490
Representative (three to be elected).	
Phil Hammond	6188
M. J. Lee	5551
George Randall	7208
Elsie Gaffney	2647
Al A. Price	4620
Joint Representative.	
Fred Meindl	5591
Elmer Lundburg	3847
County Commissioner.	
Roscoe Gard	2555
H. W. Hagemann	1791
C. W. Kruse	5971
For County Treasurer.	
W. W. Everhart	8424

MEASURES	
Compulsory Education Bill.	
Yes	6103
No	4723
1925 Fair Amendment.	
Yes	4426
No	4278
Income Tax.	
Yes	3092
No	5084
Single Tax.	
Yes	2281
No	6033

20-Year-Old Youth Escapes From Jail

TILLAMOOK, Nov. 10.—Jay Houser, Tillamook youth of about 20 years, with a local reputation as a prize-fighter, escaped jail shortly after 6 o'clock this morning. The authorities believe he had outside help.

Two bars and six bolts holding a sheet iron protection outside the jail windows were found sawed through, apparently cut some time ago. The sheriff is investigating the movements of three occupants of an automobile that was standing in front of the courthouse about the time of the jail delivery.

Houser was serving a four-months' term for petty larceny and faced an indictment charging robbery at a fishing lodge near Wheeler. He was held with five other prisoners and had been turned into the corridor at 6 o'clock by Jailer Espelette with the others. At 7 o'clock one of the others gave the alarm. None of the five admitted seeing Houser leave the jail.

The automobile standing in front of the courthouse was noticed by Night Watchman Stark, who remembered the license number. The sheriff traced the car.

FIERY CROSS IS BURNED ATOP WEST LINN HILL

Local Klan of Invisible Empire Joins In State Ceremony Over Victory In Election.

The fiery cross burned atop West Linn hill last night. Above the rise directly across the Willamette river from Seventh street in Oregon City the flaming symbol of the Invisible Empire of the Knights of the Ku Klux Klan flamed for a brief period in the dark.

It was scheduled for 9 o'clock. At 9:10, heralded by a loud explosion, the cross appeared on the hill. At first it was only a burning upright, then the crossbar took fire and for nearly an hour it blazed. More explosion, and the last bright flicker died away.

The ceremony was part of a statewide demonstration conducted last night to celebrate the victory of the Klan in the state political field. Although the candidates who were unofficially sponsored for two positions in West Linn and several positions in Oregon City were defeated, a large number of those endorsed by the K. K. K. gained office and Willamette Falls Klan number six intimates that it is not displeased over the general result.

TWO GIRLS SAID DOPED; MEN PUT UNDER ARREST

CENTRALIA, Wash., Nov. 10.—After two girls, one 16 and the other 18, had made affidavits that they had been given cocaine, John Schultz and Frank Jackson, both 35, were arrested last night by local police officers and federal narcotic agents. They were taken to Tacoma today, where the evidence in the case will be laid before a federal grand jury. A search of the defendants' rooms last night following their arrest is said to have revealed needles and other "dope" paraphernalia.

The investigation that resulted in the arrest of Jackson and Schultz started when the parents of one of the girls discovered needle marks on her arm and notified the police.

The affidavits say the girls visited the defendants' rooms on four occasions, Jackson holding the arms of the girls while Schultz applied the needle.

The girls were threatened with death if they told, they say.

Student Confesses To Setting Fire To Insured Structure

POMEROY, Wash., Nov. 10.—Ralph Spencer, a Whitman college student and a graduate of the 1921 class of the Pomeroy high school, has confessed, according to the police, to setting fire to the old Harford Bank building, destroyed Sunday night. Spencer had insured the building for \$500. He says he burned the building to get the insurance so he could attend college. He was thrown on his own resources when a small boy and has been known here as an industrious young man of good habits and fine traits of character.

He has the sympathy of hundreds of friends, who, in spite of the gravity of the crime, will use their best efforts to get matters adjusted that he may continue his college work.

Story of Wronged Love Is Related By Blind French Poilu

PARIS, Nov. 10.—A story of a wife, stolen from the fireside of a blind soldier who had sacrificed his sight for France upon the battlefield, and the murder of the man to whom she had yielded her guilty love, was related here today from Avignon.

It is a tale that reads as though it might have been lifted from the pages of De Maupassant. The wronged husband, Vincent Fabre, in his humble home at Avignon, takes the hand of his 4-year-old daughter and whispers to her:

"Daughter, get my old army pistol out of the drawer. Are you sure it is loaded? Take my arm and lead me to the home of Joseph Audenham. When we get there, if you hear your mother's voice, lead me directly in front of her. If she is not there, be sure to place me directly in front of Joseph Audenham."

Led by his little daughter, who tripped gaily at his side, Fabre reached the home of his rival. His wife was not there. The baby daughter, obeying instructions, placed her father in front of Audenham. Fabre spoke. Audenham replied. Fabre fired. Audenham fell dead. Then the baby girl, horrified, led her father back to his home, where he was arrested, repenting his act in the arm of his wife and daughter. Fabre had been with his wife since the war. He noted a change in his wife's conduct and then neighbors confirmed his suspicions. When he was led off by the gendarmes, stumbling down the roadway, he exclaimed:

RECALL OF CROSS LOSES BY MARGIN OF 694 VOTES

Final Count Is Completed By County Clerk; Tally Held Up By Failure Of Local Precinct 10 To Report.

UNOFFICIAL FIGURES ARE FOUND ACCURATE

First Returns Vary Only By Ten Ballots; Constables Of 15 Districts Are Listed.

The recall of County Judge Harvey E. Cross failed by a majority of 694 votes of a total of 10,579 cast, according to the complete official figures compiled Monday by County Clerk Fred A. Miller. Failure of the board in precinct 10 in Oregon City to make an immediate return upon the recall held up the official tabulation until after Armistice day.

The vote on the recall was:

Yes 4915

No 5564

The vote upon the two candidates, Cross and Fred D. Shank, was:

Cross 5168

Shank 4703

The official figures upon the recall compiled by the clerk show that the returns compiled by The Morning Enterprise on the night and the day following the election, came remarkably close. In the unofficial returns there was an error of only ten votes upon the ballot cast favoring the recall and 23 votes on the ballot cast against the recall.

Tabulations showing the election results upon the offices of constable and justice of the peace in the 15 districts in the county were completed Monday by Clerk Miller. Fourteen constables and two justices of the peace were elected. The justices are Albert Erickson for district 9, Beaver Creek, and W. R. Telford for district 12, Boring.

The constables who were named follow: Wilsonville, No. 1, A. W. Ward; Oswego, No. 2, Austin McVey; Milwaukie, No. 3, F. E. Lowe; Oregon City, No. 4, Ed Fortune; Oak Grove, No. 5, J. Julian; Canby, No. 6, August Rothenberg; Barlow, No. 7, C. F. Zeigler; Molalla, No. 8, Mack Hattenhauser; Beaver Creek, No. 9, App Jones; Clifton, No. 10, John Shoberg; Carver, No. 11, L. H. Snyder; Sandy, No. 12, R. C. France; Estacada, No. 14, A. G. Ames Needy; No. 15, E. K. White.

Portland Woman In Hospital As Result of Crash

Mrs. Grace Manning and R. G. Leece, both of Portland, were slightly injured in an accident Thursday evening at the intersection of Tenth and Main streets when their car struck the "Iron Policeman" and was badly wrecked. The woman was rushed to the local hospital but was able to return to her home Friday morning.

Thursday evening, shortly after 5 o'clock, Leece, in company with Mrs. Manning and a third person, was driving to Portland. The light in the intersection block was either out or burning so low that it could not be seen, he says. The machine struck upon the "Iron Policeman" and the wheel was jerked around. Leece had been running 20 miles an hour and the force of the crash threw the car on its side over upon the west side of the pavement.

The two women were thrown to the pavement. Leece turned in the seat, his feet striking the pavement, which prevented the machine from turning turtle. The woman was rushed to the Oregon City hospital. The exact extent of her injuries had not been determined last night.

At Tenth and Main streets the intersection block is not in the middle of the street, but east of the car track.

Speeder Is Fined In Justice Court

W. H. Hamblin, arrested by Traffic Officer Long on charges of speeding and passing on a curve, was fined \$10 and costs in the justice court yesterday.

County Bounty Paid Upon Two Coyotes

Bounty on two coyotes was paid yesterday by the county clerk's office. H. B. Davis of Estacada and J. B. Fowler of Boring Route One were paid \$3 each, for a pair of coyotes.

Maybe cat-love is caused by the skirts gals wear now-a-days.

CONNECTION OF HILL AND AUTO PARK TO BE ASKED

Appropriation Considered For Opening Of Road Between High Street and Highway.

Provision for the improvement of the 300 feet of road connecting the proposed bluff route of the Pacific highway with East Second street and High is to be considered at the meeting of the budget committee which is preparing the financial program of the city for the coming year. The committee is scheduled for a session some time this week, and it is expected that by the end of the present month the budget will be in shape for submission to a taxpayers' meeting.

The improvement, which would involve paving along a 300-foot extension of South Second street, would cost between \$2,500 and \$3,000, according to the estimates made by Acting City Engineer J. R. Stafford.

The high cost of the work is the result of the necessity for considerable rock excavation. The completion of this block and a half of street is necessary in order to connect the proposed South End road with the upper part of town, according to the plan presented to the committee. The new routing will strike the present South End highway about midway between the auto park and the end of the existing road. This will leave no adequate means for machines driving north on the highway to enter the uphill portion of the city without going a considerable distance down the grade and up the old road.

The plan is to ask the budget committee to make a provision for the work under its 1923 program so that by the time the road is built there will be funds on hand for making the connection.

EMPLOYMENT OF PUBLIC HEALTH NURSE PLANNED

Association to Ask Inclusion Of Fund for County Work; Katherine Ewing Speaks.

The inclusion of an appropriation in the county budget for next year for the maintenance of a county health nurse, is to be requested by the Clackamas County Public Health association, it was decided yesterday at the meeting of that organization. At the budget meeting last year, the appropriation for the health nurse was eliminated, and the work conducted for the first six months of 1922 with funds provided through the association.

Arrangements for the sale of Christmas seals in the county for the month opening December 1, were made.

Miss Katherine Ewing, of the American Red Cross spoke at the meeting on the work of the organization of which she is field secretary for this district. The next meeting of the group will be held December 5.

Managing Editor of The Enterprise Is Honored at Eugene

Hal E. Hoas, managing editor of The Morning Enterprise, was Sunday initiated into honorary membership in Sigma Delta Chi, men's professional journalistic fraternity. He was elected by Omega chapter at the University of Oregon.

Other state newspapermen elected were Ralph Cronise, editor of the Albany Democrat; Phillip Jackson, publisher, and Donald Sterling, managing editor of the Oregon Journal; W. F. G. Thacher, professor of advertising in the University of Oregon school of journalism; J. E. Wheeler, president of The Telegram Publishing company, and William Warren, assistant city editor, and Ben Hur Lampman, of the Oregonian staff.

There are two other members of Sigma Delta Chi in Oregon City, Arne G. Rae and Charles Gratke, both on the staff of The Morning Enterprise.

Hecker Transcript Is Filed in Salem

SALEM, Ore., Nov. 9.—Transcript of testimony in the murder case of the state against Russell Hecker was filed in the supreme court yesterday by Gale Hill, of Albany, and Gilbert Hedges, of Oregon City, his attorneys. The transcript covers 426 typewritten pages. A date for the hearing has not been set. Hecker, whose home is in Albany, was convicted and sentenced to be hanged for the murder of Frank Bowker, of Portland. The murder was believed to have been committed in Clackamas county and the trial was held at Oregon City.

Fools make feasts, and wise men eat them.

CEREMONIAL TO ATTEND OPENING OF NEW BRIDGE

Committee To Plan Details Is Appointed By Board Of Governors Of Commercial Club; Date Is Uncertain.

M. D. LATOURETTE IS NAMED TO HEAD BODY

Sullivan, Hedges, Mount, Eby, Charman and Andresen Are To Direct Celebration Here.

An appropriate celebration, marking the dedication of the new Pacific Highway bridge, will be held on the day that the new span is first opened to traffic, it was decided Monday at a meeting of the board of governors of the Commercial club. J. E. Hedges, president of the club, at the request of the board, appointed a committee to handle the arrangements for the affair. It is composed of M. D. Latourette, chairman; T. W. Sullivan, O. D. Eby, E. B. Charman, Gilbert Hedges, H. S. Mount, and William Andresen.

The exact date of the opening of the bridge has not been determined. An effort is being made by the business men of the city to have the span opened by the 15th of next month. The contract calls for the completion of the bridge by January 1, 1923, but the merchants are anxious to have the structure in service before the holiday season.

The determining of the exact date and the complete arrangement of the dedication are in the hands of the committee, which will probably take up the work without further direction from the club.

The board of governors decided to refer back to the Live Wires the matter of promoting the establishment here of the National Children's home of the Brotherhood of American Yeomen. At the last meeting of the Live Wires the matter was referred to the board, which determined that the promotion of the enterprise should be left to committees from the forum organization.

J. E. Hedges and E. B. Charman, president and secretary of the board, were named as delegates to attend the meeting of the state chamber of commerce, which is to be held in Portland during the month of December. The exact date of the meeting has not yet been determined.

Pierce Leads by 2663 In Official County Returns

The official count for Clackamas county will be completed today, Fred A. Miller, county clerk, believes. Prompt returns, together with an experienced checking force in the clerk's office, have made the handling of the official figures faster this year than ever before in the county.

The official count for governor increased Pierce's lead over the Democratic candidate a majority in this county of 2663.

The official figures are:

Pierce 4451

Olcott 7114

Slight changes in the exact figures for senator and representatives from Clackamas county were made by the official count, although the candidates remain unchanged. The official count is:

For Representative.	
Randall	7208
Hammond	6188
Lee	5551
Price	4620
Gaffney	2647
For Joint Representative.	
Meindl	5591
Lundburg	3847
For Joint Senator.	
Clark	5757
Hedlund	3490
For State Senator.	
Toose	7962

MAN IS ARRESTED FOR RUNNING PUNCH BOARD

E. B. Heath, of Parkplace, was arrested Thursday on charges of operating a punchboard. He was taken into custody by Deputy Carl Long and will be held to await the action of the grand jury. The offense under the state law carries a six months to one year term in the state penitentiary and a \$100 to \$1,000 fine.

There are a number of punchboards running in the county outside of Oregon City, according to information secured by the sheriff's office, and additional arrests are expected in a few days.

GERVAIS MAN INJURED IN AUTOMOBILE SMASH

A. T. Kline Hurt and Car Is Wrecked; Fred Cool Is Arrested For Reckless Driving.

A. T. Kline, Gervais, was injured badly when his car was wrecked on charge of reckless driving, as the result of an accident on the Pacific highway a mile south of Molalla bridge, 1 o'clock Friday morning. Mrs. Kline and her daughter, Erma, escaped injury, although their machine was practically demolished. Mrs. Cool was slightly bruised, but was able to continue with her husband on their way to Eugene. Cool's car was damaged to the extent of \$300.

Cool was cited to appear in court here by Traffic Officer Long, who investigated the smashup. Cool attempted to pass around a truck and two touring cars, and was unable to stop and regain the right side of the road after he saw Kline's machine, according to Long. Kline was forced partly off the road before the two cars crashed.

J. Marsters, of Molalla, and a machine driven by Dave Cady, collided at Oak Grove Hill last evening. Both cars were damaged, but none was hurt.

Elvin Catto, of Gladstone, was slightly injured when he was struck by a machine on the River road near that city. The accident had not been reported to the sheriff last evening.

REPEAL OF ALL CUSTOM MEASURES DEMANDED

CONSTANTINOPLE, Nov. 10.—The allied high commissioners yesterday handed a note to the Angora government representative here demanding the repeal of all measures relating to the customs, the public debt and the sanitary and other services which conflict with the capitulations and the stipulations of the Mudros armistice agreement of 1918.

Otherwise, says the note, the commissioners will be compelled to refer to their governments for necessary action.

The allied generals also arranged a meeting with Rafet Pasha, the nationalist governor here, to whom they will submit their demands with a view to insuring the safety of the troops and efficient control of the police and gendarmerie, and also will discuss the situation at Chanak consequent upon the Kemalist encroachments upon the neutral zone.

Better Economic Conditions Aim of Judge H. E. Cross

In a statement to the people in appreciation of the vote given him at the general election in his attempted recall, County Judge H. E. Cross yesterday pledged himself for a "campaign during 1923 for clean government and better economic conditions."

"I wish to express my profound appreciation and thanks to my friends in Clackamas county who went to the polls last Tuesday and expressed their confidence in my administration of county affairs. Their vote is an inspiration to higher and better effort in behalf of good roads, well built, and just treatment to all."

"Let me bespeak for the new county count to take office January 1, 1923, the loyal support of all good citizens of the county in a campaign for clean government and better economic conditions."

Vaccination Laws Are Declared Legal By Supreme Court

WASHINGTON, Nov. 13.—The supreme court of the United States today upheld the validity of legislation and city ordinances which compel the vaccination of children against disease as a school entrance requirement.

The decision was handed down in the case of Rosalya Zucht, a high school girl of San Antonio, Texas, who had sued the health authorities of that city for damages because it barred her from school following her refusal to submit to vaccination. The case attracted nationwide attention. The girl challenged the validity of the city ordinance and carried her appeal to the supreme court. The decision was deemed of importance to thousands of communities which have similar ordinances.

The supreme court denied her claim for damages and declared the ordinance legal.

"John, John!" whispered Mrs. Congressman Squibs. "Wake up! I'm sure there are robbers in the house." "Robbers in the house?" he muttered sleepily. "Absolutely preposterous! Here may be robbers in the Senate, Mary, but not in the House."

CONDITIONS OVER EAST ARE SAID TO BE ENCOURAGING

Will T. Wright, President Of Bank Of Oregon City, Back From Attending Meeting Of Association in New York.

AGRICULTURE VIEWED AS KEY TO SITUATION

Restoration of Buying Power Of Farmer Is Needed To Bring Prosperity, Is Belief.

That the optimism with which conditions over the country are being viewed is not superficial, but is the reaction to improvement of a slow but solid nature, is the opinion of Will T. Wright, president of the Bank of Oregon City, who has returned from an extended trip throughout the east, where he attended the American Bankers' association convention in New York.

The successful settlement of the rail and coal strikes has had a stimulating effect, both on commercial and industrial activity, Wright points out. Manufacturing plants in the east are again running on a normal basis. Steel mills are nearing a capacity output, but there is no over production in any of the major lines of manufacturing, he says.

Labor conditions, the banker found, promise to be better this winter than for a number of years past. At the time of the convention, October 2, it was found that there was practically no unemployment.

Cotton Crop Good.

"Business conditions generally," said Wright yesterday, "are encouraging. Industrial activity is marked in the east. The south is showing the first signs of improvement in agriculture. Both the cotton and the tobacco crops have been good and have found a ready market."

"Conditions in the west and middle west," he continued, "have not as yet shown the same improvement as the south and east. The wheat crop, although one of the best for several years, has been expensive to raise, and the price which the market is paying is comparatively low. All grain men and stock men are still suffering from this condition. The difficulty in the middle west is added to by the fact that they have still to overcome the fictitious land values at which property was sold during the war. This is complicating the readjustment of the agricultural situation there."

Railroads Active.

"Since the settlement of the railroad strike," the banker declared, "there has been great activity in transportation. The movement, however, is one essentially toward the east. The Union Pacific lines, along which I traveled, through Chicago on my way east and through the south on my way west, look like a continuous freight train. This has resulted in a car shortage in the west which is hampering the moving of lumber, fruit and vegetables." With the necessity for moving the middle western crops and the shipping of eastern goods and coal west, the situation will soon become adjusted, he believes.

The placing of agriculture upon a firmer basis is the problem which confronts the country, Wright pointed out. Fifty per cent of the business is agricultural, he said, and the farmer is equally as much of a consumer, both of raw and finished products, as he is a producer. The return of the agriculturists' buying power to normal is occupying the attention of

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TAX RATIOS ARE TO BE DECIDED FOR NEXT YEAR

SALEM, Nov. 11.—Assessors from 28 counties in Oregon, members of the state tax commission, and representatives of a half dozen public utilities operating in the state, held a conference here today and discussed the tax ratios for 1923. These ratios will be based on the tax rolls for 1922.

The assessors recommended a higher ratio than was fixed by the state tax commission last year, while the public utility representatives declared that any increase in the present ratio would be unreasonable and unjust. The railroads especially opposed a higher ratio and submitted figures to show that the revenue of the carriers had decreased rather than increased during the last few years.

The state tax commission will meet early in December, when the tax ratio for 1923 will be announced.

Just before adjournment the assessors elected officers for the ensuing year. H. E. Walker, assessor of Lane county, was elected president and C. L. Tallman, assessor of Benton county, secretary.